

20STCV14661 20STCV14661

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 20STCV14661 Hearing Date: September 22, 2026 Dept: 617

Dept.

617

Date:

9-22-26

Case

#: 20STCV14661

Trial

Date: N/A

APPROVAL OF PAGA SETTLEMENT

MOVING

PARTY: Plaintiffs, Omar Sonda, Jose Trejo, and Ian Zaldana-Terauds

RESPONDING

PARTY: Unopposed/Defendants, Mastro's Restaurants, LLC et al.

RELIEF

REQUESTED

Motion for Approval of PAGA Settlement

SUMMARY

OF ACTION

Plaintiffs

Omar Sonda and Jose Trejo and Ian Zaldana-Terauds, individually and on behalf of all other aggrieved employees, filed PAGA actions against Defendants Mastro's Restaurants, LLC, Mastro's OC LA, LLC, Mastro's Mason SFO Restaurant, LLC, Landry's Management, L.P., and Landry's Payroll, Inc. The actions were consolidated on July 15, 2021. On October 28, 2025, Plaintiffs filed a "consolidated" PAGA complaint.

RULING: Granted.

Plaintiffs seek approval of a settlement of the PAGA actions with Defendants. "The superior court shall review and approve any settlement of any civil action filed pursuant to [the Private Attorneys General Act]. The proposed settlement shall be submitted to the agency at the same time that it is submitted to the court." (Lab. Code, § 2699, subd. (l)(2).) Plaintiffs present proof of submission of the settlement to the California Labor and Workforce Development Agency (LWDA). [Khalili Decl. ¶ 25, Ex. G: Email Acknowledgment of Receipt.]

Labor Code section 2699, subdivision (i), requires that in an action brought under PAGA, "civil penalties recovered by aggrieved employees shall be distributed as follows: 75 percent to the Labor and Workforce Development Agency for enforcement of labor laws, . . . and 25 percent to the aggrieved employees."

The parties settled all claims for a gross settlement amount of \$1,355,000 for the period of February 10, 2019 to July 1, 2024, representing approximately 3,566 aggrieved employees working through 103,586 "Pay Periods." [Khalili Decl. ¶ 23, Ex. E: Settlement Agreement.] The settlement agreement stipulates that counsel shall request up to 33 1/3% of the Gross Settlement Fund or \$451,666.67 in fees, with 88% of awarded fees allocated to Matern Law Group, PC and 12% to Capstone Law APC. [Id. ¶¶ 23-24, Ex. E, Ex. F: Addendum to Settlement Agreement.] The agreement also provides for the recovery of costs, allocated among counsel based on counsel's actual costs and expenses. [Id. ¶ 23, Ex. E.] Counsel seeks costs in the total amount of \$37,318.26 (\$28,782.74 incurred by Matern Law Group and \$8,535.52 incurred by Capstone Law). [Id. ¶ 53, Ex. H; Perez Decl. ¶ 23.]

The Court finds the requested fee amount and costs reasonable, and counsel are awarded the requested amounts in accordance with the allocations delineated in the settlement agreement. The settlement also provides for administration costs up to \$24,500 and payment of 75% of Net Settlement Proceeds to LWDA and 25% to aggrieved employees. [Khalili Decl. ¶ 23, Ex. E.]

The administrator shall make payments not later than 30 days following receipt of the total amount of the Gross Settlement Fund from Defendants. [Khalili Decl. ¶ 23, Ex. E.] Payments to aggrieved employees will be mailed. [Ibid.]

The parties reached this agreement following mediation and negotiations. The release of claims occurs upon full funding of the settlement. [Khalili Decl. ¶ 23, Ex. E.] The Court acknowledges the request for retention of jurisdiction under Code of Civil Procedure section 664.6.

The unopposed motion is granted.

Plaintiffs to give notice.